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UNITED STATES DISTRICT COURT

NORTHERN DISTRICT OF CALIFORNIA

BRENDAN NGEHSI NEWANFORBI,

Plaintiff,

vs.

AMAZON.COM SERVICES, LLC, ACCURATE BACKGROUND, LLC, and DOES 1-10, inclusive,

Defendants.

Case No. 4:26-cv-09249-ASK

DEFENDANT AMAZON.COM SERVICES LLC'S NOTICE OF MOTION AND MOTION TO DISMISS PLAINTIFF'S FIFTH, SIXTH, AND SEVENTH CLAIMS FOR RELIEF PURSUANT TO FEDERAL RULE OF CIVIL PROCEDURE 12(b)(6)

MEMORANDUM OF POINTS AND AUTHORITIES

Date: November 18, 2026
Time: 1:30 p.m.
Courtroom: 04
Judge: Hon. Ajay S. Krishnan

TO THE UNITED STATES DISTRICT COURT FOR THE NORTHERN DISTRICT OF CALIFORNIA, AND TO PLAINTIFF BRENDAN NGEHSI NEWANFORBI:

PLEASE TAKE NOTICE THAT on November 18, 2026, at 1:30 P.M., or as soon thereafter as this matter may be heard in a courtroom to be noticed by the Court of the United States District Court for the Northern District of California, located at the Ronald V. Dellums Federal Building & United States Courthouse, 1301 Clay Street, Oakland, CA 94612, Courtroom 4, 3rd Floor, the Honorable Ajay S. Krishnan presiding, Defendant Amazon.com Services LLC ("Amazon" or "Defendant") will and hereby does move the Court for an order dismissing Plaintiff Brendan Ngehsi Newanforbi's ("Plaintiff") Fifth, Sixth, and Seventh Claims for Relief pursuant to Federal Rule of Civil Procedure ("FRCP") 12(b)(6) on the ground that Plaintiff's claims are not plausibly pleaded.

Amazon's Motion to Dismiss is based on the following grounds:

1. Plaintiff's fifth claim for invasion of privacy fails to state a claim because Plaintiff does not have a constitutionally protected privacy interest in public records and has not plausibly pled any violation of such rights.

2. Plaintiff's sixth claim based on alleged violation of the California Business and Professions Code fails to state a claim because any such relief is barred as Plaintiff has an adequate remedy at law and cannot plead any other forms of equitable relief.

3. Plaintiff's seventh claim for intentional infliction of emotional distress fails to state a claim because Plaintiff has not pled any facts sufficient to support this claim.

Amazon's Motion is based upon this Notice, this supporting Memorandum of Points and Authorities, the pleadings and records on file in this action, and such further argument as may be presented to the Court at or before the hearing on this matter.

Dated: September 22, 2026

MORGAN, LEWIS & BOCKIUS LLP

By */s/ Andrew P. Frederick*
Andrew P. Frederick
Douglass G. Brown (*pro hac vice* application pending)

Attorneys for Defendant
AMAZON.COM SERVICES LLC

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I. INTRODUCTION

Various claims asserted by Plaintiff Brendan Nghesi Newanforbi's ("Plaintiff") against Defendant Amazon.com Services LLC ("Amazon") are insufficiently pled or subject to dismissal as a matter of law. Plaintiff's sixth claim under California's Unfair Competition Law ("UCL") is subject to dismissal as a matter of law because the UCL only provides for equitable remedies. When a plaintiff has an adequate remedy at law, however, they are not entitled to equitable relief under the UCL, which is precisely the situation here. Because Plaintiff seeks compensatory damages in his Complaint, he has an adequate remedy at law, which means that his UCL claim is not viable and should therefore be dismissed.

Meanwhile, Plaintiff's fifth claim for invasion of privacy and seventh claim for intentional infliction of emotional distress are insufficiently pleaded. With respect to Plaintiff's invasion of privacy claim, Plaintiff has not plausibly pled this claim because he has not pled facts showing a legally protected privacy interest, a reasonable expectation of privacy, or a violation of his privacy interests. Similarly, for Plaintiff's intentional infliction of emotional distress claim, he has not pled any facts showing extreme or outrageous conduct by Amazon or that he has suffered severe or extreme emotional distress.

For these reasons, discussed more fully below, Amazon requests that the Court dismiss Plaintiff's Fifth, Sixth, and Seventh Claims for Relief against Amazon pursuant to Federal Rule of Civil Procedure Rule 12(b)(6).[1]

II. FACTUAL BACKGROUND

Plaintiff alleges that he applied through Amazon's hiring portal online for a position as a Seasonal XL Warehouse Associate with a possible start date of July 28, 2026. Compl. ¶ 7. After applying, he states that he received a conditional offer from Amazon for the associate position expressly premised on completion of a background check, drug test, and all pre-hire activities.

[1] Plaintiff's other claims—which are pled under Megan's Law, the California Fair Chance Act, the Fair Credit Reporting Act, and the Investigative Consumer Reporting Agencies Act—also lack merit. As far as Amazon is aware, the background check that Accurate Background is preparing on Plaintiff in connection with his application for employment with Amazon still has not been completed because of the difficulty of obtaining criminal records from certain courts in California. As such, Plaintiff's background check remains pending, and no adverse employment action has been taken against Plaintiff. This entire action, therefore, was prematurely filed.

Compl. ¶ 8. Plaintiff admits that the same offer email provided that if there are delays with the pre-hire paperwork, then Amazon would contact Plaintiff with changes to a start date or training date. Compl. ¶ 9.

After receiving confirmation for a pre-hire appointment with Amazon to review documentation and clear Plaintiff for employment, Plaintiff received several ongoing telephonic communications related to his conditional offer. Compl. ¶¶ 11–14. Plaintiff's conditional offer further required a background check, of which Amazon utilized a third-party service, Defendant Accurate Background, LLC ("Accurate"), to conduct. Compl. ¶¶ 15–16. As Plaintiff notes, he received several updates by email and text message regarding the status of his background check. Compl. ¶¶ 17–22. Plaintiff was informed that "[t]he time to complete the background check and testing can vary," Compl. ¶ 18, yet Plaintiff does not allege that he attempted to contact Amazon or Accurate to inquire about reasons why the background check was delayed.

As a result, Plaintiff's start date and training appointments were canceled, given that the background check process was not completed by the projected start time. Compl. ¶ 22. He admits that he was given the option to select a new shift, and that he has not received any formal adverse-action notice by Defendants. Compl. ¶¶ 22–23. Plaintiff now alleges that this is a constructive revocation, even prior to receiving any formal adverse-action notice. Compl. ¶¶ 24–25.

On July 28, 2026, Plaintiff filed this lawsuit against Amazon and Accurate in the Superior Court of the State of California, County of Alameda. *See* Pl.'s State Court Compl. (ECF No. 2). On August 31, 2026, Amazon removed the action to this Court. ECF No. 1. Plaintiff pleads the following claims for relief against Amazon and/or Accurate: (1) claim under California's Megan's Law (Cal. Pen. Code § 290.4 *et seq.*); (2) claim under California's Fair Chance Act (Cal. Gov't Code § 12952) (against Amazon only); (3) claim under the Fair Credit Reporting Act (15 U.S.C. § 1681b(b)(1); (4) claim under California's Investigative Consumer Reporting Agencies Act (Cal. Civ. Code § 1786.18) (primarily against Accurate); (5) claim for invasion of privacy under the California Constitution; (6) claim under California's Unfair Competition Law (Cal. Bus. & Prof. Code §17200); and (7) a claim for intentional infliction of emotional distress.

III. LEGAL STANDARD

To survive a Rule 12(b)(6) motion to dismiss, a complaint must "contain sufficient factual matter, accepted as true, to 'state a claim to relief that is plausible on its face.'" *Ashcroft v. Iqbal*, 556 U.S. 662, 678 (2009) (quoting *Bell Atlantic Corp. v. Twombly*, 550 U.S. 544, 570 (2007)). The "plausibility standard is not akin to a 'probability requirement,' but rather, it asks for more than a sheer possibility that a defendant has acted unlawfully" or "facts that are 'merely consistent with' a defendant's liability." *Ashcroft v. Iqbal*, 556 U.S. 662, 678 (2009) (quoting *Twombly*, 550 U.S. at 556-57). A complaint must contain "more than labels and conclusions" or "a formulaic recitation of the elements of a cause of action." *Twombly*, 550 U.S. at 555; *Moss v. U.S. Secret Serv.*, 572 F.3d 962, 969 (9th Cir. 2009) ("[B]are assertions . . . amounting to nothing more than a 'formulaic recitation of the elements'" of a claim "are not entitled to an assumption of truth" (quoting *Iqbal*, 556 U.S. at 681)). Therefore, the Court may not "assume the truth of legal conclusions merely because they are cast in the form of factual allegations." *W. Mining Council v. Watt*, 643 F.2d 618, 624 (9th Cir. 1981); *In re Stac Elecs. Sec. Litig.*, 89 F.3d 1399, 1403 (9th Cir. 1996) (holding that "[c]onclusory allegations of law and unwarranted inferences are insufficient to defeat a motion to dismiss for failure to state a claim").

The Court considers whether the pleading's "factual content . . . allows the court to draw the reasonable inference that the defendant is liable for the misconduct alleged," such that "it is not unfair to require the opposing party to be subjected to the expense of discovery and continued litigation." *Starr v. Baca*, 652 F.3d 1202, 1216 (9th Cir. 2011). Dismissal is required when a complaint lacks a cognizable legal theory or fails to allege facts sufficient to support a cognizable legal theory. *Twombly*, 550 U.S. at 555; *Mendiondo v. Centinela Hosp. Med. Ctr.*, 521 F.3d 1097, 1104 (9th Cir. 2008); Fed. R. Civ. P. 12(b)(6).

IV. ARGUMENT

A. Plaintiff's Sixth Claim for Purported Violation of California's Unfair Competition Law Should Be Dismissed.

Plaintiff's UCL claim fails because he already has an adequate remedy at law. The UCL only affords equitable relief to a plaintiff. *See, e.g.*, *Nationwide Biweekly Admin., Inc. v. Superior*

Court, 9 Cal.5th 279, 292 (Cal. 2020) (concluding that the "causes of action established by the UCL" are "equitable in nature"); *Clark v. Superior Court*, 50 Cal.4th 605, 610 (2010) (under the UCL, a private plaintiff's "remedies are generally limited to injunctive relief and restitution"). When a state law claim for equitable relief is before a federal court, "the necessary prerequisite for a court to award equitable remedies is the absence of an adequate remedy at law." *Barranco v. 3D Sys. Corp.*, 952 F.3d 1122, 1129 (9th Cir. 2020). Accordingly, a plaintiff must specifically allege that he lacks an adequate legal remedy to survive a motion to dismiss. *Sonner v. Premier Nutrition Corp.*, 971 F.3d 834, 844 (9th Cir. 2020) (dismissing a UCL claim because "the operative complaint does not allege that [plaintiff] lacks an adequate legal remedy"); *see also Clark v. Am. Honda Motor Co.*, 528 F. Supp. 3d 1108, 1121 (C.D. Cal. 2021) (dismissing a UCL claim because "Plaintiffs have not pointed to any allegation in the Complaint pleading that they lack an adequate remedy at law").

Notably, Plaintiff seeks compensatory damages in his Complaint. *See, e.g.*, Compl. ¶¶ 46, 53, 63, 70; *see also* Compl. pp. 23-26 ¶¶ 1–10 (Plaintiff's Prayer for Relief). He therefore has not—and cannot—allege that he lacks an adequate remedy at law. Because Plaintiff's alleged injuries can be redressed by compensatory damages, Plaintiff is not entitled to equitable relief, including an injunction. Plaintiff's UCL claim must be dismissed on this basis.

B. Plaintiff's Fifth Claim for Invasion of Privacy Should Be Dismissed.

Plaintiff's fifth claim for an alleged invasion of his privacy interests is not plausibly pled because he has not pled facts showing a legally protected privacy interest, a reasonable expectation of privacy, or a violation of his privacy interests. While California's Constitution provides for protection to an individual's right of privacy, Cal. Const. Art. I, § 1, Plaintiff's allegations do not meet the "high bar" required to sustain such a claim. *In re Yahoo Mail Litig.*, 7 F. Supp. 3d 1016, 1038 (N.D. Cal. 2014) (citation omitted).

To state a claim for invasion of privacy, a plaintiff must allege three elements, including "(1) a legally protected privacy interest; (2) a reasonable expectation of privacy in the circumstances; and (3) conduct by defendant constituting a serious invasion of privacy." *Smith v. YETI Coolers, LLC*, 754 F. Supp. 3d 933, 944 (N.D. Cal. 2024) (quoting *Hill v. Nat'l Collegiate*

Athletic Ass'n, 26 Cal. Rptr. 2d 834, 859, 865 (Cal. 1994)). As to the third prong, "[a]ctionable invasions of privacy must be sufficiently serious in their nature, scope, and actual or potential impact to constitute an egregious breach of the social norms underlying the privacy right." *Id.* (quoting *Hill*, 26 Cal. Rptr. 2d at 857). Plaintiff fails to adequately allege any element.

First, Plaintiff has no legally protected privacy interest in public information relating to criminal convictions or information posted on a government website. *See Brahmana v. Henard*, 2010 WL 11488727, at *4 (N.D. Cal. Nov. 12, 2010); *Est. of Hearst*, 67 Cal. App. 3d 777, 782 (Cal. Ct. App. 1977) ("[T]here can be no doubt that court records are public records . . . ."). Plaintiff asserts that he has a "protected privacy interest in the information maintained on the Sex Offender Registry and the Megan's Law website," Compl. ¶ 73, but this cannot be so given that the information contained on the Megan's Law website is publicly accessible.

Second, even if a protected privacy interest exists, "[a] plaintiff cannot have a reasonable expectation of privacy if [he] consented to the intrusion." *Saleh v. Nike, Inc.*, 562 F. Supp. 3d 503, 524 (C.D. Cal. 2021) (citation omitted). Plaintiff alleges that he applied through Amazon's hiring portal, completed onboarding paperwork, and received a "conditional" offer of employment subject to successfully completing a background check. Compl. ¶¶ 7–8. As such, Plaintiff was aware that a background check would be performed on him and consented to this background check. *Id.* Plaintiff, therefore, cannot claim a reasonable expectation of privacy in the consented-to background check.

Lastly, for the same reason, Plaintiff cannot now claim that a background check that he consented to somehow constituted an invasion of his privacy interests. Accordingly, Plaintiff has failed to plead a viable invasion of privacy claim and thus this claim should be dismissed.

C. Plaintiff's Seventh Claim for Intentional Infliction of Emotional Distress Should Be Dismissed.

A claim for intentional infliction of emotional distress requires (1) extreme and outrageous conduct by the defendant with the intention of causing, or reckless disregard of the probability of causing, emotional distress, (2) the plaintiff's suffering severe or extreme emotional distress, and (3) actual and proximate causation of the emotional distress by the

defendant's outrageous conduct. *Carlsen v. Koivumaki*, 227 Cal. App. 4th 879, 896 (2014).

Plaintiff fails to plead any facts supporting these elements in his Complaint. Specifically, Plaintiff alleges that he was subjected to severe emotional harm due to a "pending" status for his background check for twenty days, claiming this "prolonged uncertainty about his employment status" is so egregious as to cause him "anxiety, mental anguish, humiliation, embarrassment, loss of sleep, and related symptoms." Compl. ¶¶ 85–87. Yet, there is nothing extreme or outrageous about an alleged twenty-day "delay" for a background check to be conducted and thus this delay cannot form the basis for a claim for intentional infliction of emotional distress. *See, e.g.*, *King v. Facebook, Inc.*, 572 F. Supp. 3d 776, 786 (N.D. Cal. Nov. 12, 2021) (collecting cases dismissing claims for IIED as a matter of law) ("Liability for IIED does not extend to mere insults, indignities, threats, annoyances, petty oppressions, or other trivialities."). The alleged conduct here falls woefully short of that needed to assert an IIED claim. As such, this claim should be dismissed.

V. CONCLUSION

Amazon respectfully requests that this Court dismiss Plaintiff's fifth claim for invasion of privacy, sixth claim for unfair competition, and seventh claim for intentional infliction of emotional distress.

Dated: September 22, 2026

MORGAN, LEWIS & BOCKIUS LLP

By */s/ Andrew P. Frederick*
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